

HRMAGIX010 - Employee Absconding Policy



Version: 2.0, 28th April 2025



Effective Date: 15th June 2025



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1. Purpose

This policy outlines the procedures and consequences associated with absconding (unauthorized absence) by employees at the workplace. The goal is to establish clear guidelines for handling such situations fairly and consistently.

2. Scope

This policy applies to all employees of HR Magix.

3. Definition of Absconding

Absconding refers to the unauthorized and unexplained absence of an employee from the workplace for a continuous period of three or more working days without:

- Prior notice
 - Approval
 - Subsequent communication
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4. Reporting Absence

Employees are expected to follow the company's standard procedure for reporting absences due to illness, emergencies, or unforeseen circumstances. This includes:

- Notifying the immediate supervisor/manager or HR department
 - Sending communication via email as early as possible
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5. Handling of Absconding Cases

If an employee fails to report to work for more than three consecutive workdays without notifying their supervisor/HR, the following steps will be initiated:

5.1 Initial Attempt to Contact

- **Email/Phone Contact:**

HR or the immediate supervisor will attempt to contact the absent employee via phone, email, or other available means.

- **Written Notice:**

If no response is received within a reasonable timeframe (one week), a written notice will be sent to the employee's last known address/email requesting an explanation within 5 business days upon receipt.

5.2 Final Warning

If no satisfactory response is received, a final warning will be issued, stating that continued absence could result in disciplinary action up to and including termination.

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6. Disciplinary Action

If the employee remains absent beyond the final warning period without valid communication, disciplinary actions will include:

- Absconding Employee:

If an employee absconds without serving their applicable notice period, the company reserves the right to recover one month's gross salary as per the employment agreement.

- Termination of Employment:

Employment may be terminated due to unauthorised absence. Termination will be communicated officially in writing.

- Final Settlement:

Pending dues or benefits will be settled according to company policy and relevant employment laws.

Note: Before finalising termination, the employee will be given a reasonable opportunity to explain the absence. All disciplinary actions will be documented and communicated in writing.

7. Reinstatement Procedure

Reinstatement is at the company's discretion and may involve:

- Investigation into the reasons for the previous absence
 - Consideration of business needs and the employee's conduct record
 - Approval on a case-by-case basis
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8. Compliance

All employees must adhere to this policy. Failure to comply may result in disciplinary action, up to and including termination.

9. Legal Action

If the employee fails to:

- Respond to legal notices
- Settle outstanding dues within the specified period

The company reserves the right to initiate legal proceedings to recover the owed amount under applicable laws.

10. Employees Leaving Without Serving Notice Period

Employees leaving without serving the required notice period will be liable for recovery as per the terms mentioned in their employment agreement.

11. Communication

This policy will be:

- Communicated to all employees upon joining.
 - Made available for future reference.
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12. Policy Review

This policy will be reviewed periodically to ensure it remains effective and aligned with organisational needs and legal requirements.
